

CORPORATIONS ACT 2001 - SECT 286

Obligation to keep financial records

(1) A company, registered scheme, registrable superannuation entity or disclosing entity must keep written financial records that:

- (a) correctly record and explain its transactions and financial position and performance; and
- (b) would enable true and fair financial statements to be prepared and audited.

The obligation to keep financial records of transactions extends to transactions undertaken as trustee.

Note 1: Section 9 defines *financial records* .

Note 2: Section 1232A extends this section to keeping financial records for sub - funds of retail and wholesale CCIVs, and applies this Part accordingly.

Period for which records must be retained

(2) The financial records must be retained for 7 years after the transactions covered by the records are completed.

Fault - based offence

- (3) A person commits an offence if the person contravenes subsection (1) or (2).

Strict liability offence

- (4) A person commits an offence of strict liability if the person contravenes subsection (1) or (2).